**UNITED STATES BANKRUPTCY COURT**
**DISTRICT OF SOUTH DAKOTA**

| | | |
|---|---|---|
| In re: | ) | Bankr. No. 00-00000 |
| | ) | Chapter 7 |
| | ) | |
| EXAMPLE DEBTOR ONE | ) | |
| SSN xxx-xx-0000 | ) | |
| fka EXAMPLE ALIAS ONE | ) | |
| | ) | |
| EXAMPLE DEBTOR TWO | ) | |
| SSN xxx-xx-1111 | ) | |
| | ) | |
| Debtors. | ) | |
| | ) | |
| EXAMPLE CREDIT UNION | ) | Adv. No. 00-00001 |
| EXAMPLE SERVICING, LLC | ) | |
| Plaintiffs, | ) | |
| | ) | |
| v. | ) | |
| | ) | |
| EXAMPLE DEBTOR ONE | ) | |
| Defendant One, | ) | |
| EXAMPLE DEBTOR TWO | ) | |
| Defendant Two. | ) | |

**COMPLAINT TO DETERMINE DISCHARGEABILITY OF DEBTS (11 U.S.C. § 523(a)(2)(A) AND (a)(6))**

COME NOW Plaintiffs, by and through their attorney, EXAMPLE COUNSEL, to allege and complain as follows:

## I. PARTIES AND JURISDICTION

1. Plaintiff EXAMPLE CREDIT UNION is a credit union organized under the laws of the State of South Dakota.

2. Plaintiff EXAMPLE SERVICING, LLC is a limited liability company that services loans for Plaintiff EXAMPLE CREDIT UNION.

3. Defendants filed a joint Chapter 7 petition on January 15, 2000, in this Court.

4. This adversary proceeding arises under 11 U.S.C. §§ 523(a)(2)(A) and 523(a)(6) and is a core proceeding under 28 U.S.C. § 157(b)(2)(I).

5. Plaintiffs do not consent to the entry of final orders or judgment by the bankruptcy court.

## II. FIRST CLAIM FOR RELIEF: NONDISCHARGEABILITY UNDER 11 U.S.C. § 523(a)(2)(A)

6. Plaintiffs re-allege the preceding paragraphs.

7. On or about March 3, 1999, Defendant One *represented in writing* that the household income stated on a loan application was accurate.

8. The representation was false, and Defendant One knew it was false when it was made.

9. Plaintiffs relied on the representation when they made the loan.

10. The loan balance owed to Plaintiffs on the petition date was $12,345.67.

11. The debt is excepted from discharge under 11 U.S.C. § 523(a)(2)(A).

## III. SECOND CLAIM FOR RELIEF: NONDISCHARGEABILITY UNDER 11 U.S.C. § 523(a)(6)

12. Plaintiffs re-allege the preceding paragraphs.

13. On or about June 9, 1999, Defendant Two intentionally damaged the collateral securing the loan described above.

14. Defendant Two intended the damage and knew it would injure Plaintiffs' interest in that collateral.

15. Plaintiffs were injured in the amount of $4,000.00.

16. The debt is excepted from discharge under 11 U.S.C. § 523(a)(6).

## PRAYER FOR RELIEF

WHEREFORE, Plaintiffs pray that the Court enter judgment as follows:

1. Determining that the debt of Defendant One to Plaintiffs in the amount of $12,345.67 is excepted from discharge under 11 U.S.C. § 523(a)(2)(A);
2. Determining that the debt of Defendant Two to Plaintiffs in the amount of $4,000.00 is excepted from discharge under 11 U.S.C. § 523(a)(6);
3. Awarding Plaintiffs their costs of suit; and
4. Granting such further relief as the Court deems just.

DATED January 1, 2001.

/s/ Example Counsel
Example Counsel
Example Law Office
100 Example Street
Sioux Falls, SD 57101
(605) 000-0000
counsel@example.invalid
Attorneys for Plaintiffs